

Bela Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 April 2018 · Writ-C No. 11468 of 2018 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ disputing electricity issued by Purvanchal Vidyut Vitran Nigam Limited is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory alternative remedy; the petition is dismissed.

FACTUAL SUMMARY

Bela Devi filed Writ-C No. 11468 of 2018 in the Allahabad High Court against the State of Uttar Pradesh and three others. She disputed the electricity issued by Purvanchal Vidyut Vitran Nigam Limited, Allahabad. Counsel for the respondents appeared and stated that she could invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench of Dilip Gupta and Neeraj Tiwari, JJ. heard the petition on 2 April 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternative-remedy

HOLDING

Where a consumer disputes electricity issued by the distribution licensee, Clause 6.5 of the U.P. Electricity Supply Code, 2005 is a statutory alternative remedy, and a writ petition on that dispute will not be entertained. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ disputing electricity issued by Purvanchal Vidyut Vitran Nigam Limited is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory alternative remedy; the petition is dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY ISSUED BY PURVANCHAL VIDYUT VITRAN NIGAM LIMITED

The Court declined the writ on alternative-remedy grounds and did not examine the underlying dispute. ¶ 1